

Soled Financial Services P/L
Registered Micro Finance Institution
Suite 5, Badow Court, 45 livingstone Harare

LOAN AGREEMENT

Mr. Mrs. Other First Names

ID Surname

Telephone Numbers Mobile

Residential Address

Next of Kin

Name, Address and phone

Attach invoice

Borrowers Bank Details

Invoice Amount	Number of installments	Invoice number

Name of Bank	Account number

Financial Schedule

Loan Amount USD	Collection commission	Establishment fee	Interest rate	IMMT Tax	Bank transfer Charge	Loan protection policy	Installment amount	Number of installments
	5% of installment	5% of loan amount	7% of loan amount/month	3% of loan	2.5% of loan	2.5% of loan		

Please indicate source of income to meet the repayment.(Provide documentary proof)

Monthly Salary	☒	Remittances from Diaspora	☐	Sale of Asset	☐	Other	☐
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State Purpose of Loan	
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DECLARATIONS

- I hereby declare that the above is a true and correct statement of all the details provided and further authorize Soled Financial Services P/L (hereinafter called MFI) to make such enquiries, which it considers necessary to assess this loan. I understand and accept that the MFI reserves the right to decline this credit request without giving reasons.
- I hereby declare and agree that I apply for Credit by signing this document and this will become a valid loan agreement upon signature by the MFI.
- I hereby agree that the loan agreement is subject to the special conditions herein and general terms and conditions overleaf. I hereby declare that I have read the agreement and understand the terms and conditions as they will apply to the agreement.
- I have seen the schedule of information in the finance schedule setting out the full details of everything I have to pay if the loan is granted. I further declare that I have done my budget and the monthly loan repayment (s) is within my regular monthly income.
- I further agree that the proceeds of the loan will be paid to **KENCOR MANAGEMENT SERVICES (PVT) LTD** as per pro-forma invoice.
- I further declare that where the installments are deducted from my salary I may not unilaterally cancel the Stop Order deduction until the loan has been repaid in full. The method of repayment is at the discretion of the MFI.
- The repayment start date is thirty days from the date of collection of the goods.

.....
Borrowers Signature

.....
Date

I hereby freely and voluntarily accept the MFI's offer of financial facility as per financial schedule herein and subject to the special conditions stipulated herein and general terms and conditions overleaf.

.....
Witnessed by.

.....
For and on behalf of Soled Financial Services P/L

.....
Date

General Terms and Conditions

1. I/We agree to pay the Establishment fee mentioned in the financial schedule above for putting the facility in place and authorize the MFI to add the fee to the principal loan granted. Such fee shall be added to the capital sum and shall bear interest in accordance with the Interest set forth
2. I/We agree to pay the Bank Charges and Money Transfer tax mentioned in the financial schedule above as prescribed by the Bank and the Minister of Finance respectively. Such amounts shall be added to the capital sum and shall bear interest in accordance with the Interest set forth
3. I/We agree that the **MFI** will pay an annual premium for a personal loan protection insurance policy to secure this loan and such payment shall be added to the capital sum and shall bear interest in accordance with the Interest set forth. The policy covers instances of death and disability that inhibit me from acquiring gainful employment only.
4. **All amounts owing to the MFI under the said agreement shall bear interest at the rate set forth herein. Interest shall be calculated and payable monthly in advance on the loan advanced by the MFI.** where any advance or other payment is made by the MFI in any month, Interest shall be reckoned thereon from the date such advance or payment is made and shall be calculated in advance from that date up to the end of the month in which that date falls. At the commencement of each month any Interest accrued but not yet paid in terms of the said facility shall be capitalized and shall thereupon form a portion of the amount outstanding at the commencement of each month. Any Interest due in terms hereof shall be secured by the security provided. **All amounts that are overdue shall bear an overdue interest of 50% of the loan per month.**
5. I/we agree that the MFI may grant time or other indulgences, but this shall not under any circumstances be deemed to be a waiver of the MFI's rights in terms of this agreement.
6. I/we agree that no variation of this agreement shall be of any force or effect unless reduced to writing and signed by the Parties hereto.
7. I/we hereby acknowledge and agree that the aforesaid agreement constitutes the entire contract with the MFI and no other conditions, stipulations, warranties or representations whatsoever have been made by the MFI, or their respective agents, other than such as are included herein and signed by the Parties hereto.
8. In the event of any failure to make a repayment on the due date, the outstanding principal amount of the loan and accrued interest shall become immediately due and payable. A certificate signed by the MFI's authorised officer shall be conclusive proof of the sum that is due and owing to the MFI.
9. I/we renounce the benefits of the Legal exceptions non numeratae pecuniae, non causa debiti, de duobus vel pluribus reis debendi, beneficium ordinis seu excussionis, errori calculi, the meaning and effect of which I/we acknowledge myself/ourselves to be fully acquainted with and confirm that I/we understand.
10. I/we agree that the borrower shall pay all monies due via Salary Stop Order. The account of the borrower with the MFI, will only be credited when the said funds are received from the Employer.
11. The MFI shall at all times have the sole and unfettered right of appropriation of all sums paid towards the loan. All payments shall be appropriated first to interest accrued, account maintenance fees, charges, legal fees, loan insurance policies and all charges mentioned in this facility letter thereafter shall be appropriated to the Capital.
12. I/we agree that early repayment of the loan will be allowed at the MFI's discretion subject to payment of the whole of the outstanding principal amount plus 30 days interest thereon calculated up to and including date of payment.
13. I/we understand that the MFI shall be entitled to take such action as it deems fit to enforce these conditions and I/we shall be liable to reimburse the MFI in full, in respect of any legal action taken to recover its monies including a letter of demand, all legal fees and collection charges on a Legal Practitioner/Client scale.
14. I/We choose as my/our address of service, the address given above and I/we hereby consent to the jurisdiction of the Magistrate Courts, sitting at Harare, notwithstanding that the sum claimed exceeds the monetary jurisdiction of the aforesaid Court
15. I/we agree that by signing this agreement I/we give the MFI permission to:- Contact anyone to check that the information which I have given herein is correct; Obtain details from any party about my financial status and banking details including a credit record and payment history; Give information about this loan to any party, including the credit bureau and other Financial Institutions; Assign its right title and interest to this agreement to any party or entity nominated by the MFI; Where fraud is committed with this application to report the details thereof to The Employer, Zimbabwe Republic Police or similar organizations; Forward marketing material and offerings of other products of the MFI to me.
16. **DIRECT BANK DEBIT AUTHORISATION**
 - a) I/ we hereby authorize the MFI to draw against my bank account (or any other bank or branch which I may transfer my salary account) in accordance with the bank details as stated in this agreement.
 - b) If the salary deduction implemented on my payroll fails for whatever reason, the MFI may effect the debit order as agreed herein.
 - c) I/ we agree that the monthly instalment(s) due as per financial schedule of this Loan Agreement will be deducted on or before the last day of each month.
 - d) I/ we agree that such debits to my bank account by the MFI shall be treated as though I had signed them personally. I understand that the debits hereby authorized will be processed by computer through an electronic system and I also understand that detail of each debit will be printed on my bank statement or on an accompanying voucher. I agree to pay any bank charges relating to this debit order instruction.
 - e) I/we agree that should I be paid weekly or fortnightly the instalment will be collected in part on a weekly or fortnightly basis.
 - f) I/we agree that should there be insufficient funds in my account, the MFI is entitled to make partial recoveries of whatever balance is available in my bank account until the full loan amount plus interest and charges debited in terms of the financial Schedule herein have been paid in full.
 - g) I hereby acknowledge and agree that all debits to my bank account will be effected in terms of this loan agreement and hereby indemnify the paying bank for effecting the debit order instruction.